

STATE OF NEW YORK

4523--B

2025-2026 Regular Sessions

IN ASSEMBLY

February 4, 2025

Introduced by M. of A. CUNNINGHAM, BICHOTTE HERMELYN, LEE, TAPIA, GONZALEZ-ROJAS, TAYLOR, BORES, SIMONE, RAJKUMAR, LASHER, ANDERSON, LUCAS, ROSENTHAL, SIMON, SAYEGH -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to owner liability for failure of an operator to comply with street cleaning parking rules; to amend the public officers law, in relation to access to records prepared pursuant to street cleaning parking rules; and providing for the repeal of certain provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 1111-j to read as follows:

3 § 1111-j. Owner liability for failure of an operator to comply with
4 street cleaning parking rules. (a) 1. Notwithstanding any other
5 provision of law, the city of New York is hereby authorized to establish
6 a demonstration program imposing monetary liability on the owner of a
7 vehicle for failure of an operator thereof to comply with posted street
8 cleaning parking rules in such city in accordance with the provisions of
9 this section. Such demonstration program shall empower the New York
10 city department of sanitation to install street cleaning vehicle photo
11 devices on street cleaning vehicles along street cleaning routes at
12 locations determined by such department in such city and to administer
13 such program in consultation with the New York city department of trans-
14 portation.

15 2. Any photographs, microphotographs, videotape or other recorded
16 images captured by street cleaning vehicle photo devices shall be inad-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD05516-04-6

1 missible in any disciplinary proceeding convened by the department and
2 any proceeding initiated by the department involving licensure privi-
3 leges of street cleaning vehicle operators. Any street cleaning vehicle
4 photo device mounted on a street cleaning vehicle shall be directed
5 outwardly from such vehicle to capture images of vehicles operated in
6 violation of street cleaning parking rules, and images produced by such
7 device shall not be used for any other purpose in the absence of a court
8 order requiring such images to be produced.

9 3. No street cleaning vehicle photo device shall be used unless on the
10 day it is to be used it has successfully passed a self-test of its func-
11 tions.

12 4. (i) The city of New York shall adopt and enforce measures to
13 protect the privacy of drivers, passengers, pedestrians and cyclists
14 whose identity and identifying information may be captured by a street
15 cleaning photo device. Such measures shall include:

16 (A) utilization of necessary technologies to ensure, to the extent
17 practicable, that photographs, microphotographs, videotape or other
18 recorded images produced by such street cleaning vehicle photo device
19 shall not include images that identify the driver, the passengers, or
20 the contents of the vehicle. Provided, however, that no notice
21 of liability issued pursuant to this section shall be dismissed solely
22 because such a photograph, microphotograph, videotape or other
23 recorded image allows for the identification of the driver, the passen-
24 gers, or the contents of vehicles where the city shows that it made
25 reasonable efforts to comply with the provisions of this paragraph in
26 such case; and

27 (B) oversight procedures to ensure compliance with the privacy
28 protection measures under this subdivision.

29 (ii) Photographs, microphotographs, videotape or any other recorded
30 image from a street cleaning vehicle photo device shall be for the
31 exclusive use of the city for the purpose of the adjudication of liabil-
32 ity imposed pursuant to this section and of the owner receiving a notice
33 of liability pursuant to this section, and shall be destroyed by the
34 city upon the final resolution of the notice of liability to which such
35 photographs, microphotographs, videotape or other recorded images
36 relate, or one year following the date of issuance of such notice of
37 liability, whichever is later. Notwithstanding the provisions of any
38 other law, rule or regulation to the contrary, photographs, microphoto-
39 graphs, videotape or any other recorded image from a street
40 cleaning vehicle photo device shall not be open to the public, nor
41 subject to civil or criminal process or discovery, nor used by any
42 court or administrative or adjudicatory body in any action or proceed-
43 ing therein except that which is necessary for the adjudication of a
44 notice of liability issued pursuant to this section, and no
45 public entity or employee, officer or agent thereof shall disclose
46 such information, except that such photographs, microphotographs,
47 videotape or any other recorded images from such devices:

48 (A) shall be available for inspection and copying and use by the motor
49 vehicle owner and operator for so long as such photographs, microphoto-
50 graphs, videotape or other recorded images are required to be maintained
51 or are maintained by such public entity, employee, officer or agent; and

52 (B) (1) shall be furnished when described in a search warrant issued
53 by a court authorized to issue such a search warrant pursuant to article
54 six hundred ninety of the criminal procedure law or a federal court
55 authorized to issue such a search warrant under federal law, where such
56 search warrant states that there is reasonable cause to believe such

1 information constitutes evidence of, or tends to demonstrate that, a
2 misdemeanor or felony offense was committed in this state or another
3 state, or that a particular person participated in the commission of a
4 misdemeanor or felony offense in this state or another state, provided,
5 however, that if such offense was against the laws of another state, the
6 court shall only issue a warrant if the conduct comprising such offense
7 would, if occurring in this state, constitute a misdemeanor or felony
8 against the laws of this state; and

9 (2) shall be furnished in response to a subpoena duces tecum signed by
10 a judge of competent jurisdiction and issued pursuant to article six
11 hundred ten of the criminal procedure law or a judge or magistrate of a
12 federal court authorized to issue such a subpoena duces tecum under
13 federal law, where the judge finds and the subpoena states that there is
14 reasonable cause to believe such information is relevant and material to
15 the prosecution, or the defense, or the investigation by an authorized
16 law enforcement official, of the alleged commission of a misdemeanor or
17 felony in this state or another state, provided, however, that if such
18 offense was against the laws of another state, such judge or magistrate
19 shall only issue such subpoena if the conduct comprising such offense
20 would, if occurring in this state, constitute a misdemeanor or felony in
21 this state; and

22 (3) may, if lawfully obtained pursuant to this clause and clause (A)
23 of this subparagraph and otherwise admissible, be used in such criminal
24 action or proceeding.

25 (iii) The demonstration program authorized pursuant to this section is
26 prohibited from utilizing and from arranging for the utilization of
27 biometric identifying technology, including but not limited to facial
28 recognition technology, for any purpose. The use, and the arrangement
29 for the use, of biometric identifying technology, including but not
30 limited to facial recognition technology, on photographs, microphoto-
31 graphs, videotape, or any other recorded image or data produced by a
32 street cleaning photo device, by any person for any purpose, are prohib-
33 ited. For purposes of this subparagraph, "person" shall include, but not
34 be limited to, a human being, a public or private corporation, an unin-
35 corporated association, a partnership, a government or a governmental
36 instrumentality, a court or an administrative or adjudicatory body, and
37 any employee, officer, and agent of the foregoing.

38 5. Every street cleaning vehicle upon which a street cleaning vehicle
39 photo device is installed and operated pursuant to a demonstration
40 program authorized pursuant to this section shall be equipped with
41 signs, placards or other displays giving notice to motor vehicle opera-
42 tors that street cleaning vehicle photo devices are used to enforce
43 street cleaning parking rules.

44 6. Warning notices of violation shall be issued during the first sixty
45 days that street cleaning vehicle photo devices pursuant to a demon-
46 stration program authorized by this section are active and in operation.

47 7. The city of New York shall adopt and enforce measures:

48 (i) to upgrade signage at regular intervals within street cleaning
49 routes stating that street cleaning vehicle photo devices are used to
50 enforce street cleaning parking rules along such routes; and

51 (ii) to prohibit the use or dissemination of vehicles' license plate
52 information and other information and images captured by street cleaning
53 vehicle photo devices except: (A) as required to establish liability
54 under this section or collect payment of penalties; (B) as required by
55 court order; or (C) as otherwise required by law.

1 (b) If the city of New York has established a program pursuant to
2 subdivision (a) of this section, the owner of a vehicle shall be liable
3 for a penalty imposed pursuant to this section if such vehicle was
4 parked in violation of any street cleaning parking rule of such city and
5 such violation is evidenced by information obtained from a street clean-
6 ing vehicle photo device.

7 (c) For purposes of this section, the following terms shall have the
8 following meanings:

9 1. "Biometric identifying technology" shall mean any tool using an
10 automated or semi-automated process that assists in verifying a person's
11 identity based on a person's biometric information.

12 2. "Biometric information" shall mean any measurable physical, physio-
13 logical or behavioral characteristics that are attributable to a person,
14 including but not limited to facial characteristics, fingerprint charac-
15 teristics, hand characteristics, eye characteristics, vocal character-
16 istics, and any other characteristics that can be used to identify a
17 person including, but not limited to: fingerprints; handprints; retina
18 and iris patterns; DNA sequence; voice; gait; and facial geometry.

19 3. "Facial recognition" shall mean any tool using an automated or
20 semiautomated process that assists in uniquely identifying or verifying
21 a person by comparing and analyzing patterns based on the person's face.

22 4. "Owner" shall have the meaning provided in article two-B of this
23 chapter.

24 5. "Street cleaning routes" shall mean street cleaning routes desig-
25 nated by the New York city department of sanitation that include
26 upgraded signage stating that street cleaning vehicle photo devices are
27 used to enforce street cleaning parking rules.

28 6. "Street cleaning parking rules" shall mean the prohibited parking
29 of any vehicle on one side of the street to allow for cleaning by the
30 New York city department of sanitation during designated time periods as
31 posted by sign pursuant to the rules of the New York city department of
32 transportation.

33 7. "Street cleaning vehicle" shall mean any vehicle operated by the
34 New York city department of sanitation that is designed to wash dirt and
35 grime, and remove litter and debris, from the street surface.

36 8. "Street cleaning vehicle photo device" shall mean a device that is
37 mounted on a street cleaning vehicle, is capable of operating independ-
38 ently of an enforcement officer and produces one or more images of each
39 vehicle at the time it is in violation of street cleaning parking rules.

40 (d) A certificate, sworn to or affirmed by a technician employed by
41 the city of New York in which the charged violation occurred, or a
42 facsimile thereof, based upon inspection of photographs, microphoto-
43 graphs, videotape or other recorded images produced by a street cleaning
44 vehicle photo device, shall be prima facie evidence of the facts
45 contained therein. Any photographs, microphotographs, videotape or other
46 recorded images evidencing such a violation shall be available for
47 inspection in any proceeding to adjudicate the liability for such
48 violation pursuant to this section.

49 (e) An owner liable for a violation of a street cleaning parking rule
50 imposed on any route shall be liable for monetary penalties in accord-
51 ance with a schedule of fines and penalties promulgated by the parking
52 violations bureau of the city of New York; provided, however, that the
53 monetary penalty for violating a street cleaning parking rule shall not
54 exceed fifty dollars for each violation; provided, further, that an
55 owner shall be liable for an additional penalty not to exceed twenty-

1 five dollars for each violation for the failure to respond to a notice
2 of liability within the prescribed time period.

3 (f) An imposition of liability under the demonstration program estab-
4 lished pursuant to this section shall not be deemed a conviction as an
5 operator and shall not be made part of the operating record of the
6 person upon whom such liability is imposed nor shall it be used for
7 insurance purposes in the provision of motor vehicle insurance coverage.

8 (g) 1. A notice of liability shall be sent by first class mail to each
9 person alleged to be liable as an owner for a violation of a street
10 cleaning parking rule. Personal delivery on the owner shall not be
11 required. A manual or automatic record of mailing prepared in the ordi-
12 nary course of business shall be prima facie evidence of the facts
13 contained therein.

14 2. A notice of liability shall contain the name and address of the
15 person alleged to be liable as an owner for violation of a street clean-
16 ing parking rule, the registration number of the vehicle involved in
17 such violation, the location where such violation took place including
18 the street or cross streets, one or more images identifying the
19 violation, the date and time of such violation and the identification
20 number of the street cleaning vehicle photo device that recorded the
21 violation or other document locator number.

22 3. The notice of liability shall contain information advising the
23 person charged of the manner and the time in which such person may
24 contest the liability alleged in the notice. Such notice of liability
25 shall also contain a warning to advise the person charged that failure
26 to contest in the manner and time provided shall be deemed an admission
27 of liability and that a default judgment may be entered thereon.

28 4. The notice of liability shall be prepared and mailed by an agency
29 or agencies designated by the city of New York, or any other entity
30 authorized by such city to prepare and mail such notification of
31 violation.

32 5. Adjudication of the liability imposed upon owners by this section
33 shall be by the New York city parking violations bureau.

34 (h) If an owner of a vehicle receives a notice of liability pursuant
35 to this section for any time period during which the vehicle was
36 reported to the police department as having been stolen, it shall be a
37 valid defense to an allegation of liability for violation of a street
38 cleaning parking rule of such city, that the vehicle had been reported
39 to the police as stolen prior to the time the violation occurred and had
40 not been recovered by such time. For purposes of asserting the defense
41 provided by this subdivision it shall be sufficient that a certified
42 copy of the police report on the stolen vehicle be sent by first class
43 mail to the parking violations bureau.

44 (i) 1. An owner who is a lessor of a vehicle to which a notice of
45 liability was issued pursuant to subdivision (g) of this section shall
46 not be liable for the violation of the street cleaning parking rule,
47 provided that:

48 (i) prior to the violation, the lessor has filed with such parking
49 violations bureau in accordance with the provisions of section two
50 hundred thirty-nine of this chapter; and

51 (ii) within thirty-seven days after receiving notice from such bureau
52 of the date and time of such liability, together with the other informa-
53 tion contained in the original notice of liability, the lessor submits
54 to such bureau the correct name and address of the lessee of the vehicle
55 identified in the notice of liability at the time of such violation,
56 together with such other additional information contained in the rental,

1 lease or other contract document, as may be reasonably required by such
2 bureau pursuant to regulations that may be promulgated for such purpose.

3 2. Failure to comply with subparagraph (ii) of paragraph one of this
4 subdivision shall render the lessor liable for the penalty prescribed in
5 this section.

6 3. Where the lessor complies with the provisions of paragraph one of
7 this subdivision, the lessee of such vehicle on the date of such
8 violation shall be deemed to be the owner of such vehicle for purposes
9 of this section, shall be subject to liability for such violation pursu-
10 ant to this section, and shall be sent a notice of liability pursuant to
11 subdivision (g) of this section.

12 (j) 1. If the owner liable for a violation of a street cleaning park-
13 ing rule pursuant to this section was not the operator of the vehicle
14 at the time of such violation, the owner may maintain an action for
15 indemnification against the operator.

16 2. Notwithstanding any other provision of this section, no owner of a
17 vehicle shall be subject to a monetary fine imposed pursuant to this
18 section if the operator of such vehicle was operating such vehicle with-
19 out the consent of the owner at the time such operator failed to obey a
20 street cleaning parking rule. For purposes of this subdivision there
21 shall be a presumption that the operator of such vehicle was operating
22 such vehicle with the consent of the owner at the time such operator
23 failed to obey a street cleaning parking rule.

24 (k) Nothing in this section shall be construed to limit the liability
25 of an operator of a vehicle for any violation of a street cleaning park-
26 ing rule.

27 (l) If the city of New York adopts a demonstration program pursuant to
28 subdivision (a) of this section, such city's department of sanitation
29 shall submit a report on the results of the use of street cleaning park-
30 ing rule-related photo devices to the governor, the temporary president
31 of the senate, and the speaker of the assembly by April first, two thou-
32 sand twenty-nine and every two years thereafter. The department of
33 sanitation of the city of New York shall also make such reports avail-
34 able on their public-facing websites, provided that they may provide
35 aggregate data from paragraph one of this subdivision if the city finds
36 that publishing specific location data would jeopardize public safety.
37 Such report shall include, but not be limited to:

38 1. a description of the locations and/or vehicles where street clean-
39 ing vehicle photo devices were used;

40 2. the total number of violations recorded on a monthly and annual
41 basis;

42 3. the total number of notices of liability issued;

43 4. the number of fines and total amount of fines paid after the first
44 notice of liability;

45 5. the number of violations adjudicated and results of such adjudi-
46 cations including breakdowns of dispositions made;

47 6. the total amount of revenue realized by such city and department;

48 7. the quality of the adjudication process and its results;

49 8. the total number of cameras;

50 9. the total cost to such city; and

51 10. an assessment by the New York city department of sanitation of
52 the efficacy of the program in enabling such department to clean the
53 city's streets.

54 (m) It shall be a defense to any prosecution for a violation of a
55 street cleaning parking rule pursuant to a demonstration program adopted

pursuant to this section that such street cleaning vehicle photo devices were malfunctioning at the time of the alleged violation.

§ 2. Subdivision 1 of section 235 of the vehicle and traffic law, as amended by section 1 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

1. Notwithstanding any inconsistent provision of any general, special or local law or administrative code to the contrary, in any city which heretofore or hereafter is authorized to establish an administrative tribunal: (a) to hear and determine complaints of traffic infractions constituting parking, standing or stopping violations, or (b) to adjudicate the liability of owners for violations of subdivision (d) of section eleven hundred eleven of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with traffic-control indications through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter, or (c) to adjudicate the liability of owners for violations of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter, or (d) to adjudicate the liability of owners for violations of bus lane restrictions as defined by article twenty-four of this chapter imposed pursuant to a bus rapid transit program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus lane restrictions through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter, or (e) to adjudicate the liability of owners for violations of toll collection regulations imposed by certain public authorities pursuant to the law authorizing such public authorities to impose monetary liability on the owner of a vehicle for failure of an operator thereof to comply with toll collection regulations of such public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty, or (f) to adjudicate the liability of owners for violations of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivisions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter, or (g) to adjudicate the liability of owners for violations of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter in relation to gross vehicle weight and/or axle weight violations imposed pursuant to a weigh in motion demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such gross vehicle weight and/or axle weight restrictions through the installation and operation of weigh in motion violation monitoring systems, in

1 accordance with article ten of this chapter, or (h) to adjudicate the
2 liability of owners for violations of subdivision (b), (d), (f) or (g)
3 of section eleven hundred eighty of this chapter imposed pursuant to a
4 demonstration program imposing monetary liability on the owner of a
5 vehicle for failure of an operator thereof to comply with such posted
6 maximum speed limits within a highway construction or maintenance work
7 area through the installation and operation of photo speed violation
8 monitoring systems, in accordance with article thirty of this chapter,
9 or (i) to adjudicate the liability of owners for violations of bus oper-
10 ation-related traffic regulations as defined by article twenty-four of
11 this chapter imposed pursuant to a demonstration program imposing mone-
12 tary liability on the owner of a vehicle for failure of an operator
13 thereof to comply with such bus operation-related traffic regulations
14 through the installation and operation of bus operation-related photo
15 devices, in accordance with article twenty-four of this chapter, or (j)
16 to adjudicate the liability of owners for violations of street cleaning
17 parking rules as defined by article twenty-four of this chapter imposed
18 pursuant to a program imposing monetary liability on the owner of a
19 vehicle for failure of an operator thereof to comply with such street
20 cleaning parking rules through the installation and operation of street
21 cleaning vehicle photo devices, in accordance with article twenty-four
22 of this chapter, such tribunal and the rules and regulations pertaining
23 thereto shall be constituted in substantial conformance with the follow-
24 ing sections.

25 § 3. Subdivision 1 of section 236 of the vehicle and traffic law, as
26 amended by section 2 of part N of chapter 58 of the laws of 2025, is
27 amended to read as follows:

28 1. Creation. In any city as hereinbefore or hereafter authorized such
29 tribunal when created shall be known as the parking violations bureau
30 and shall have jurisdiction of traffic infractions which constitute a
31 parking violation and, where authorized: (a) to adjudicate the liability
32 of owners for violations of subdivision (d) of section eleven hundred
33 eleven of this chapter imposed pursuant to a local law or ordinance
34 imposing monetary liability on the owner of a vehicle for failure of an
35 operator thereof to comply with traffic-control indications through the
36 installation and operation of traffic-control signal photo violation-
37 monitoring systems, in accordance with article twenty-four of this chap-
38 ter, or (b) to adjudicate the liability of owners for violations of
39 subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty
40 of this chapter imposed pursuant to a demonstration program imposing
41 monetary liability on the owner of a vehicle for failure of an operator
42 thereof to comply with such posted maximum speed limits through the
43 installation and operation of photo speed violation monitoring systems,
44 in accordance with article thirty of this chapter, or (c) to adjudicate
45 the liability of owners for violations of bus lane restrictions as
46 defined by article twenty-four of this chapter imposed pursuant to a bus
47 rapid transit program imposing monetary liability on the owner of a
48 vehicle for failure of an operator thereof to comply with such bus lane
49 restrictions through the installation and operation of bus lane photo
50 devices, in accordance with article twenty-four of this chapter, or (d)
51 to adjudicate the liability of owners for violations of toll collection
52 regulations imposed by certain public authorities pursuant to the law
53 authorizing such public authorities to impose monetary liability on the
54 owner of a vehicle for failure of an operator thereof to comply with
55 toll collection regulations of such public authorities through the
56 installation and operation of photo-monitoring systems, in accordance

1 with the provisions of section two thousand nine hundred eighty-five of
2 the public authorities law and sections sixteen-a, sixteen-b and
3 sixteen-c of chapter seven hundred seventy-four of the laws of nineteen
4 hundred fifty, or (e) to adjudicate the liability of owners for
5 violations of section eleven hundred seventy-four of this chapter when
6 meeting a school bus marked and equipped as provided in subdivisions
7 twenty and twenty-one-c of section three hundred seventy-five of this
8 chapter imposed pursuant to a local law or ordinance imposing monetary
9 liability on the owner of a vehicle for failure of an operator thereof
10 to comply with school bus red visual signals through the installation
11 and operation of school bus photo violation monitoring systems, in
12 accordance with article twenty-nine of this chapter, or (f) to adjudi-
13 cate the liability of owners for violations of section three hundred
14 eighty-five of this chapter and the rules of the applicable covered
15 agency or covered authority as such terms are defined in article ten of
16 this chapter in relation to gross vehicle weight and/or axle weight
17 violations imposed pursuant to a weigh in motion demonstration program
18 imposing monetary liability on the owner of a vehicle for failure of an
19 operator thereof to comply with such gross vehicle weight and/or axle
20 weight restrictions through the installation and operation of weigh in
21 motion violation monitoring systems, in accordance with article ten of
22 this chapter, or (g) to adjudicate the liability of owners for
23 violations of subdivision (b), (d), (f) or (g) of section eleven hundred
24 eighty of this chapter imposed pursuant to a demonstration program
25 imposing monetary liability on the owner of a vehicle for failure of an
26 operator thereof to comply with such posted maximum speed limits within
27 a highway construction or maintenance work area through the installation
28 and operation of photo speed violation monitoring systems, in accordance
29 with article thirty of this chapter, or (h) to adjudicate the liability
30 of owners for violations of bus operation-related traffic regulations as
31 defined by article twenty-four of this chapter imposed pursuant to a
32 demonstration program imposing monetary liability on the owner of a
33 vehicle for failure of an operator thereof to comply with such bus oper-
34 ation-related traffic regulations through the installation and operation
35 of bus operation-related photo devices, in accordance with article twen-
36 ty-four of this chapter, or (i) to adjudicate the liability of owners
37 for violations of street cleaning parking rules as defined by article
38 twenty-four of this chapter imposed pursuant to a program imposing mone-
39 tary liability on the owner of a vehicle for failure of an operator
40 thereof to comply with such street cleaning parking rules through the
41 installation and operation of street cleaning vehicle photo devices, in
42 accordance with article twenty-four of this chapter. Such tribunal,
43 except in a city with a population of one million or more, shall also
44 have jurisdiction of abandoned vehicle violations. For the purposes of
45 this article, a parking violation is the violation of any law, rule or
46 regulation providing for or regulating the parking, stopping or standing
47 of a vehicle. In addition for purposes of this article, "commissioner"
48 shall mean and include the commissioner of traffic of the city or an
49 official possessing authority as such a commissioner.

50 § 4. Paragraph f of subdivision 1 of section 239 of the vehicle and
51 traffic law, as amended by section 3 of part N of chapter 58 of the laws
52 of 2025, is amended to read as follows:

53 f. "Notice of violation" means a notice of violation as defined in
54 subdivision nine of section two hundred thirty-seven of this article,
55 but shall not be deemed to include a notice of liability issued pursuant
56 to authorization set forth in articles ten, twenty-four, twenty-nine and

thirty of this chapter, section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty to impose monetary liability on the owner of a vehicle for failure of an operator thereof: to comply with traffic-control indications in violation of subdivision (d) of section eleven hundred eleven of this chapter through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with bus lane restrictions as defined by article twenty-four of this chapter through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or to comply with toll collection regulations of certain public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; or to stop for a school bus displaying a red visual signal in violation of section eleven hundred seventy-four of this chapter through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with gross vehicle weight and/or axle weight restrictions in violation of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; or to comply with bus operation-related traffic regulations as defined by article twenty-four of this chapter in violation of the rules of the department of transportation of the city of New York through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter; or to comply with street cleaning parking rules as defined by article twenty-four of this chapter through the installation and operation of street cleaning vehicle photo devices, in accordance with article twenty-four of this chapter.

§ 5. Subdivisions 1, 1-a and the opening paragraph of paragraph (a) of subdivision 1-b of section 240 of the vehicle and traffic law, subdivisions 1 and 1-a as amended by section 4 of part N of chapter 58 of the laws of 2025, and the opening paragraph of paragraph (a) of subdivision 1-b as amended by section 5 of part MM of chapter 56 of the laws of 2023, are amended to read as follows:

1. Notice of hearing. Whenever a person charged with a parking violation enters a plea of not guilty; or a person alleged to be liable in accordance with any provisions of law specifically authorizing the imposition of monetary liability on the owner of a vehicle for failure of an operator thereof: to comply with traffic-control indications in violation of subdivision (d) of section eleven hundred eleven of this

chapter through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with bus lane restrictions as defined by article twenty-four of this chapter through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or to comply with toll collection regulations of certain public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; or to stop for a school bus displaying a red visual signal in violation of section eleven hundred seventy-four of this chapter through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with gross vehicle weight and/or axle weight restrictions in violation of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; or to comply with bus operation-related traffic regulations as defined by article twenty-four of this chapter in violation of the rules of the department of transportation of the city of New York through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter; or to comply with street cleaning parking rules as defined by article twenty-four of this chapter through the installation and operation of street cleaning vehicle photo devices, in accordance with article twenty-four of this chapter, contests such allegation, the bureau shall advise such person personally by such form of first class mail as the director may direct of the date on which such person must appear to answer the charge at a hearing. The form and content of such notice of hearing shall be prescribed by the director, and shall contain a warning to advise the person so pleading or contesting that failure to appear on the date designated, or on any subsequent adjourned date, shall be deemed an admission of liability, and that a default judgment may be entered thereon.

1-a. Fines and penalties. Whenever a plea of not guilty has been entered, or the bureau has been notified that an allegation of liability in accordance with provisions of law specifically authorizing the imposition of monetary liability on the owner of a vehicle for failure of an operator thereof: to comply with traffic-control indications in violation of subdivision (d) of section eleven hundred eleven of this chapter through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (c), (d), (f) or (g) of section

eleven hundred eighty of this chapter through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with bus lane restrictions as defined by article twenty-four of this chapter through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or to comply with toll collection regulations of certain public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; or to stop for a school bus displaying a red visual signal in violation of section eleven hundred seventy-four of this chapter through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with gross vehicle weight and/or axle weight restrictions in violation of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; or to comply with bus operation-related traffic regulations as defined by article twenty-four of this chapter in violation of the rules of the department of transportation of the city of New York through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter, or to comply with street cleaning parking rules as defined by article twenty-four of this chapter through the installation and operation of street cleaning vehicle photo devices, in accordance with article twenty-four of this chapter, is being contested, by a person in a timely fashion and a hearing upon the merits has been demanded, but has not yet been held, the bureau shall not issue any notice of fine or penalty to that person prior to the date of the hearing.

In a city having a population of one million or more, at every hearing for the adjudication of a notice of liability, as provided by this article, there shall be a rebuttable presumption that the owner of a first-response emergency vehicle alleged to be liable in accordance with any provisions of law specifically authorizing the imposition of monetary liability on the owner of a vehicle for failure of an operator thereof: to comply with traffic-control indications in violation of subdivision (d) of section eleven hundred eleven of this chapter through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with bus lane restrictions as defined by article twenty-four of this chapter through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or to comply with bus operation-related traffic regulations as defined by article twenty-four of this chapter in violation of the rules

1 of the department of transportation of the city of New York through the
2 installation and operation of bus operation-related photo devices, in
3 accordance with article twenty-four of this chapter; or to comply with
4 street cleaning parking rules as defined by article twenty-four of this
5 chapter through the installation and operation of street cleaning
6 vehicle photo devices, in accordance with article twenty-four of this
7 chapter is not liable for such alleged violation if such owner of the
8 first-response emergency vehicle provides the hearing officer with:

9 § 6. Paragraphs a and g of subdivision 2 of section 240 of the vehicle
10 and traffic law, as amended by section 5 of part N of chapter 58 of the
11 laws of 2025, are amended to read as follows:

12 a. Every hearing for the adjudication of a charge of parking violation
13 or an allegation of liability of an owner for a violation of subdivision
14 (d) of section eleven hundred eleven of this chapter imposed pursuant to
15 a local law or ordinance imposing monetary liability on the owner of a
16 vehicle for failure of an operator thereof to comply with traffic-con-
17 trol indications through the installation and operation of traffic-con-
18 trol signal photo violation-monitoring systems, in accordance with arti-
19 cle twenty-four of this chapter, or an allegation of liability of an
20 owner for a violation of subdivision (b), (c), (d), (f) or (g) of
21 section eleven hundred eighty of this chapter imposed pursuant to a
22 demonstration program imposing monetary liability on the owner of a
23 vehicle for failure of an operator thereof to comply with certain posted
24 maximum speed limits through the installation and operation of photo
25 speed violation monitoring systems, in accordance with article thirty of
26 this chapter, or an allegation of liability of an owner for a violation
27 of bus lane restrictions as defined by article twenty-four of this chap-
28 ter imposed pursuant to a bus rapid transit program imposing monetary
29 liability on the owner of a vehicle for failure of an operator thereof
30 to comply with such bus lane restrictions through the installation and
31 operation of bus lane photo devices, in accordance with article twenty-
32 four of this chapter, or an allegation of liability of an owner for a
33 violation of toll collection regulations imposed by certain public
34 authorities pursuant to the law authorizing such public authorities to
35 impose monetary liability on the owner of a vehicle for failure of an
36 operator thereof to comply with toll collection regulations of such
37 public authorities through the installation and operation of photo-moni-
38 toring systems, in accordance with the provisions of section two thou-
39 sand nine hundred eighty-five of the public authorities law and sections
40 sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four
41 of the laws of nineteen hundred fifty, or an allegation of liability of
42 an owner for a violation of section eleven hundred seventy-four of this
43 chapter when meeting a school bus marked and equipped as provided in
44 subdivisions twenty and twenty-one-c of section three hundred seventy-
45 five of this chapter imposed pursuant to a local law or ordinance impos-
46 ing monetary liability on the owner of a vehicle for failure of an oper-
47 ator thereof to comply with school bus red visual signals through the
48 installation and operation of school bus photo violation monitoring
49 systems, in accordance with article twenty-nine of this chapter, or an
50 allegation of liability of an owner for a violation of subdivision (b),
51 (d), (f) or (g) of section eleven hundred eighty of this chapter imposed
52 pursuant to a demonstration program imposing monetary liability on the
53 owner of a vehicle for failure of an operator thereof to comply with
54 certain posted maximum speed limits within a highway construction or
55 maintenance work area through the installation and operation of photo
56 speed violation monitoring systems, in accordance with article thirty of

1 this chapter, or an allegation of liability of an owner for a violation
2 of section three hundred eighty-five of this chapter and the rules of
3 the applicable covered agency or covered authority as such terms are
4 defined in article ten of this chapter in relation to gross vehicle
5 weight and/or axle weight violations imposed pursuant to a weigh in
6 motion demonstration program imposing monetary liability on the owner of
7 a vehicle for failure of an operator thereof to comply with such gross
8 vehicle weight and/or axle weight restrictions through the installation
9 and operation of weigh in motion violation monitoring systems, in
10 accordance with article ten of this chapter, or an allegation of liability
11 of an owner for a violation of bus operation-related traffic regulations
12 as defined by article twenty-four of this chapter imposed pursuant
13 to a demonstration program imposing monetary liability on the owner
14 of a vehicle for failure of an operator thereof to comply with such bus
15 operation-related traffic regulations through the installation and operation
16 of bus operation-related photo devices, in accordance with article
17 twenty-four of this chapter, or an allegation of liability of an owner
18 for a violation of street cleaning parking rules as defined by article
19 twenty-four of this chapter imposed pursuant to a program imposing monetary
20 liability on the owner of a vehicle for failure of an operator
21 thereof to comply with such street cleaning parking rules through the
22 installation and operation of street cleaning vehicle photo devices, in
23 accordance with article twenty-four of this chapter, shall be held
24 before a hearing examiner in accordance with rules and regulations
25 promulgated by the bureau.

26 g. A record shall be made of a hearing on a plea of not guilty or of a
27 hearing at which liability in accordance with any provisions of law
28 specifically authorizing the imposition of monetary liability on the
29 owner of a vehicle for failure of an operator thereof: to comply with
30 traffic-control indications in violation of subdivision (d) of section
31 eleven hundred eleven of this chapter through the installation and operation
32 of traffic-control signal photo violation-monitoring systems, in
33 accordance with article twenty-four of this chapter; to comply with
34 certain posted maximum speed limits in violation of subdivision (b),
35 (c), (d), (f) or (g) of section eleven hundred eighty of this chapter
36 through the installation and operation of photo speed violation monitoring
37 systems, in accordance with article thirty of this chapter; to
38 comply with bus lane restrictions as defined by article twenty-four of
39 this chapter through the installation and operation of bus lane photo
40 devices, in accordance with article twenty-four of this chapter; to
41 comply with toll collection regulations of certain public authorities
42 through the installation and operation of photo-monitoring systems, in
43 accordance with the provisions of section two thousand nine hundred
44 eighty-five of the public authorities law and sections sixteen-a,
45 sixteen-b and sixteen-c of chapter seven hundred seventy-four of the
46 laws of nineteen hundred fifty; to stop for a school bus displaying a
47 red visual signal in violation of section eleven hundred seventy-four of
48 this chapter through the installation and operation of school bus photo
49 violation monitoring systems, in accordance with article twenty-nine of
50 this chapter; to comply with certain posted maximum speed limits in
51 violation of subdivision (b), (d), (f) or (g) of section eleven hundred
52 eighty of this chapter within a highway construction or maintenance work
53 area through the installation and operation of photo speed violation
54 monitoring systems, in accordance with article thirty of this chapter;
55 to comply with gross vehicle weight and/or axle weight restrictions in
56 violation of section three hundred eighty-five of this chapter and the

1 rules of the applicable covered agency or covered authority as such
2 terms are defined in article ten of this chapter through the installa-
3 tion and operation of weigh in motion violation monitoring systems, in
4 accordance with article ten of this chapter; or to comply with bus oper-
5 ation-related traffic regulations as defined by article twenty-four of
6 this chapter in violation of the rules of the department of transporta-
7 tion of the city of New York through the installation and operation of
8 bus operation-related photo devices, in accordance with article twenty-
9 four of this chapter; or to comply with street cleaning parking rules as
10 defined by article twenty-four of this chapter through the installation
11 and operation of street cleaning vehicle photo devices, in accordance
12 with article twenty-four of this chapter, is contested. Recording
13 devices may be used for the making of the record.

14 § 7. Subdivisions 1 and 2 of section 241 of the vehicle and traffic
15 law, as amended by section 6 of part N of chapter 58 of the laws of
16 2025, are amended to read as follows:

17 1. The hearing examiner shall make a determination on the charges,
18 either sustaining or dismissing them. Where the hearing examiner deter-
19 mines that the charges have been sustained such hearing examiner may
20 examine either the prior parking violations record or the record of
21 liabilities incurred in accordance with any provisions of law specif-
22 ically authorizing the imposition of monetary liability on the owner of
23 a vehicle for failure of an operator thereof: to comply with traffic-
24 control indications in violation of subdivision (d) of section eleven
25 hundred eleven of this chapter through the installation and operation of
26 traffic-control signal photo violation-monitoring systems, in accordance
27 with article twenty-four of this chapter; to comply with certain posted
28 maximum speed limits in violation of subdivision (b), (c), (d), (f) or
29 (g) of section eleven hundred eighty of this chapter through the instal-
30 lation and operation of photo speed violation monitoring systems, in
31 accordance with article thirty of this chapter; to comply with bus lane
32 restrictions as defined by article twenty-four of this chapter through
33 the installation and operation of bus lane photo devices, in accordance
34 with article twenty-four of this chapter; to comply with toll collection
35 regulations of certain public authorities through the installation and
36 operation of photo-monitoring systems, in accordance with the provisions
37 of section two thousand nine hundred eighty-five of the public authori-
38 ties law and sections sixteen-a, sixteen-b and sixteen-c of chapter
39 seven hundred seventy-four of the laws of nineteen hundred fifty; to
40 stop for a school bus displaying a red visual signal in violation of
41 section eleven hundred seventy-four of this chapter through the instal-
42 lation and operation of school bus photo violation monitoring systems,
43 in accordance with article twenty-nine of this chapter; to comply with
44 certain posted maximum speed limits in violation of subdivision (b),
45 (d), (f) or (g) of section eleven hundred eighty of this chapter within
46 a highway construction or maintenance work area through the installation
47 and operation of photo speed violation monitoring systems, in accordance
48 with article thirty of this chapter; to comply with gross vehicle weight
49 and/or axle weight restrictions in violation of section three hundred
50 eighty-five of this chapter and the rules of the applicable covered
51 agency or covered authority as such terms are defined in article ten of
52 this chapter through the installation and operation of weigh in motion
53 violation monitoring systems, in accordance with article ten of this
54 chapter; ~~or~~ to comply with bus operation-related traffic regulations
55 as defined by article twenty-four of this chapter in violation of the
56 rules of the department of transportation of the city of New York

1 through the installation and operation of bus operation-related photo
2 devices, in accordance with article twenty-four of this chapter; or to
3 comply with street cleaning parking rules as defined by article twenty-
4 four of this chapter through the installation and operation of street
5 cleaning vehicle photo devices, in accordance with article twenty-four
6 of this chapter, of the person charged, as applicable prior to rendering
7 a final determination. Final determinations sustaining or dismissing
8 charges shall be entered on a final determination roll maintained by the
9 bureau together with records showing payment and nonpayment of penal-
10 ties.

11 2. Where an operator or owner fails to enter a plea to a charge of a
12 parking violation or contest an allegation of liability in accordance
13 with any provisions of law specifically authorizing the imposition of
14 monetary liability on the owner of a vehicle for failure of an operator
15 thereof: to comply with traffic-control indications in violation of
16 subdivision (d) of section eleven hundred eleven of this chapter through
17 the installation and operation of traffic-control signal photo viola-
18 tion-monitoring systems, in accordance with article twenty-four of this
19 chapter; to comply with certain posted maximum speed limits in violation
20 of subdivision (b), (c), (d), (f) or (g) of section eleven hundred
21 eighty of this chapter through the installation and operation of photo
22 speed violation monitoring systems, in accordance with article thirty of
23 this chapter; to comply with bus lane restrictions as defined by article
24 twenty-four of this chapter through the installation and operation of
25 bus lane photo devices, in accordance with article twenty-four of this
26 chapter; to comply with toll collection regulations of certain public
27 authorities through the installation and operation of photo-monitoring
28 systems, in accordance with the provisions of section two thousand nine
29 hundred eighty-five of the public authorities law and sections
30 sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four
31 of the laws of nineteen hundred fifty; to stop for a school bus display-
32 ing a red visual signal in violation of section eleven hundred seventy-
33 four of this chapter through the installation and operation of school
34 bus photo violation monitoring systems, in accordance with article twen-
35 ty-nine of this chapter; to comply with certain posted maximum speed
36 limits in violation of subdivision (b), (d), (f) or (g) of section elev-
37 en hundred eighty of this chapter within a highway construction or main-
38 tenance work area through the installation and operation of photo speed
39 violation monitoring systems, in accordance with article thirty of this
40 chapter; to comply with gross vehicle weight and/or axle weight
41 restrictions in violation of section three hundred eighty-five of this
42 chapter and the rules of the applicable covered agency or covered
43 authority as such terms are defined in article ten of this chapter
44 through the installation and operation of weigh in motion violation
45 monitoring systems, in accordance with article ten of this chapter; ~~or~~
46 to comply with bus operation-related traffic regulations as defined by
47 article twenty-four of this chapter in violation of the rules of the
48 department of transportation of the city of New York through the instal-
49 lation and operation of bus operation-related photo devices, in accord-
50 ance with article twenty-four of this chapter; or to comply with street
51 cleaning parking rules as defined by article twenty-four of this chapter
52 through the installation and operation of street cleaning vehicle photo
53 devices, in accordance with article twenty-four of this chapter, or
54 fails to appear on a designated hearing date or subsequent adjourned
55 date or fails after a hearing to comply with the determination of a
56 hearing examiner, as prescribed by this article or by rule or regulation

1 of the bureau, such failure to plead or contest, appear or comply shall
2 be deemed, for all purposes, an admission of liability and shall be
3 grounds for rendering and entering a default judgment in an amount
4 provided by the rules and regulations of the bureau. However, after the
5 expiration of the original date prescribed for entering a plea and
6 before a default judgment may be rendered, in such case the bureau shall
7 pursuant to the applicable provisions of law notify such operator or
8 owner, by such form of first class mail as the commission may direct;
9 (1) of the violation charged, or liability alleged in accordance with
10 any provisions of law specifically authorizing the imposition of mone-
11 tary liability on the owner of a vehicle for failure of an operator
12 thereof: to comply with traffic-control indications in violation of
13 subdivision (d) of section eleven hundred eleven of this chapter through
14 the installation and operation of traffic-control signal photo viola-
15 tion-monitoring systems, in accordance with article twenty-four of this
16 chapter; to comply with certain posted maximum speed limits in violation
17 of subdivision (b), (c), (d), (f) or (g) of section eleven hundred
18 eighty of this chapter through the installation and operation of photo
19 speed violation monitoring systems, in accordance with article thirty of
20 this chapter; to comply with bus lane restrictions as defined by article
21 twenty-four of this chapter through the installation and operation of
22 bus lane photo devices, in accordance with article twenty-four of this
23 chapter; to comply with toll collection regulations of certain public
24 authorities through the installation and operation of photo-monitoring
25 systems, in accordance with the provisions of section two thousand nine
26 hundred eighty-five of the public authorities law and sections
27 sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four
28 of the laws of nineteen hundred fifty; to stop for a school bus display-
29 ing a red visual signal in violation of section eleven hundred seventy-
30 four of this chapter through the installation and operation of school
31 bus photo violation monitoring systems, in accordance with article twen-
32 ty-nine of this chapter; to comply with certain posted maximum speed
33 limits in violation of subdivision (b), (d), (f) or (g) of section elev-
34 en hundred eighty of this chapter within a highway construction or main-
35 tenance work area through the installation and operation of photo speed
36 violation monitoring systems, in accordance with article thirty of this
37 chapter; to comply with gross vehicle weight and/or axle weight
38 restrictions in violation of section three hundred eighty-five of this
39 chapter and the rules of the applicable covered agency or covered
40 authority as such terms are defined in article ten of this chapter
41 through the installation and operation of weigh in motion violation
42 monitoring systems, in accordance with article ten of this chapter; ~~[or]~~
43 to comply with bus operation-related traffic regulations as defined by
44 article twenty-four of this chapter in violation of the rules of the
45 department of transportation of the city of New York through the instal-
46 lation and operation of bus operation-related photo devices, in accord-
47 ance with article twenty-four of this chapter; or to comply with street
48 cleaning parking rules as defined by article twenty-four of this chapter
49 through the installation and operation of street cleaning vehicle photo
50 devices, in accordance with article twenty-four of this chapter, (2) of
51 the impending default judgment, (3) that such judgment will be entered
52 in the Civil Court of the city in which the bureau has been established,
53 or other court of civil jurisdiction or any other place provided for the
54 entry of civil judgments within the state of New York, and (4) that a
55 default may be avoided by entering a plea or contesting an allegation of
56 liability in accordance with any provisions of law specifically author-

1 izing the imposition of monetary liability on the owner of a vehicle for
2 failure of an operator thereof: to comply with traffic-control indi-
3 cations in violation of subdivision (d) of section eleven hundred eleven
4 of this chapter through the installation and operation of traffic-con-
5 trol signal photo violation-monitoring systems, in accordance with arti-
6 cle twenty-four of this chapter; to comply with certain posted maximum
7 speed limits in violation of subdivision (b), (c), (d), (f) or (g) of
8 section eleven hundred eighty of this chapter through the installation
9 and operation of photo speed violation monitoring systems, in accordance
10 with article thirty of this chapter; to comply with bus lane
11 restrictions as defined by article twenty-four of this chapter through
12 the installation and operation of bus lane photo devices, in accordance
13 with article twenty-four of this chapter; to comply with toll collection
14 regulations of certain public authorities through the installation and
15 operation of photo-monitoring systems, in accordance with the provisions
16 of section two thousand nine hundred eighty-five of the public authori-
17 ties law and sections sixteen-a, sixteen-b and sixteen-c of chapter
18 seven hundred seventy-four of the laws of nineteen hundred fifty; to
19 stop for a school bus displaying a red visual signal in violation of
20 section eleven hundred seventy-four of this chapter through the instal-
21 lation and operation of school bus photo violation monitoring systems,
22 in accordance with article twenty-nine of this chapter; to comply with
23 certain posted maximum speed limits in violation of subdivision (b),
24 (d), (f) or (g) of section eleven hundred eighty of this chapter within
25 a highway construction or maintenance work area through the installation
26 and operation of photo speed violation monitoring systems, in accordance
27 with article thirty of this chapter; to comply with gross vehicle weight
28 and/or axle weight restrictions in violation of section three hundred
29 eighty-five of this chapter and the rules of the applicable covered
30 agency or covered authority as such terms are defined in article ten of
31 this chapter through the installation and operation of weigh in motion
32 violation monitoring systems, in accordance with article ten of this
33 chapter; [✗] to comply with bus operation-related traffic regulations
34 as defined by article twenty-four of this chapter in violation of the
35 rules of the department of transportation of the city of New York
36 through the installation and operation of bus operation-related photo
37 devices, in accordance with article twenty-four of this chapter; or to
38 comply with street cleaning parking rules as defined by article twenty-
39 four of this chapter through the installation and operation of street
40 cleaning vehicle photo devices, in accordance with article twenty-four
41 of this chapter; or making an appearance within thirty days of the send-
42 ing of such notice. Pleas entered and allegations contested within that
43 period shall be in the manner prescribed in the notice and not subject
44 to additional penalty or fee. Such notice of impending default judgment
45 shall not be required prior to the rendering and entry thereof in the
46 case of operators or owners who are non-residents of the state of New
47 York. In no case shall a default judgment be rendered or, where
48 required, a notice of impending default judgment be sent, more than two
49 years after the expiration of the time prescribed for entering a plea or
50 contesting an allegation. When a person has demanded a hearing, no fine
51 or penalty shall be imposed for any reason, prior to the holding of the
52 hearing. If the hearing examiner shall make a determination on the
53 charges, sustaining them, such hearing examiner shall impose no greater
54 penalty or fine than those upon which the person was originally charged.

§ 8. Subparagraph (i) of paragraph a of subdivision 5-a of section 401 of the vehicle and traffic law, as amended by section 7 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

(i) If at the time of application for a registration or renewal there- of there is a certification from a court, parking violations bureau, traffic and parking violations agency or administrative tribunal of appropriate jurisdiction that the registrant or their representative failed to appear on the return date or any subsequent adjourned date or failed to comply with the rules and regulations of an administrative tribunal following entry of a final decision in response to a total of three or more summonses or other process in the aggregate, issued within an eighteen month period, charging either that: (i) such motor vehicle was parked, stopped or standing, or that such motor vehicle was operated for hire by the registrant or their agent without being licensed as a motor vehicle for hire by the appropriate local authority, in violation of any of the provisions of this chapter or of any law, ordinance, rule or regulation made by a local authority; or (ii) the registrant was liable for a violation of subdivision (d) of section eleven hundred eleven of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with traffic-control indications through the installation and operation of traffic-control signal photo violation- monitoring systems, in accordance with article twenty-four of this chap- ter; or (iii) the registrant was liable for a violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chap- ter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or (iv) the registrant was liable for a violation of bus lane restrictions as defined by article twenty- four of this chapter imposed pursuant to a bus rapid transit program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus lane restrictions through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or (v) the registrant was liable for a violation of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivi- sions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing mone- tary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the instal- lation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; or (vi) the registrant was liable for a violation of section three hundred eighty- five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chap- ter in relation to gross vehicle weight and/or axle weight violations imposed pursuant to a weigh in motion demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such gross vehicle weight and/or axle weight restrictions through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; or (vii) the registrant was liable for a violation of subdivi- sion (b), (d), (f) or (g) of section eleven hundred eighty of this chap- ter imposed pursuant to a demonstration program imposing monetary

1 liability on the owner of a vehicle for failure of an operator thereof
2 to comply with such posted maximum speed limits within a highway
3 construction or maintenance work area through the installation and oper-
4 ation of photo speed violation monitoring systems, in accordance with
5 article thirty of this chapter[7]; or (viii) the registrant was liable
6 for a violation of bus operation-related traffic regulations as defined
7 by article twenty-four of this chapter imposed pursuant to a demon-
8 stration program imposing monetary liability on the owner of a vehicle
9 for failure of an operator thereof to comply with such bus operation-re-
10 lated traffic regulations through the installation and operation of bus
11 operation-related photo devices, in accordance with article twenty-four
12 of this chapter[7]; or (ix) the registrant was liable for a violation of
13 street cleaning parking rules as defined by article twenty-four of this
14 chapter imposed pursuant to a program imposing monetary liability on the
15 owner of a vehicle for failure of an operator thereof to comply with
16 such street cleaning parking rules through the installation and opera-
17 tion of street cleaning vehicle photo devices, in accordance with arti-
18 cle twenty-four of this chapter, the commissioner or their agent shall
19 deny the registration or renewal application until the applicant
20 provides proof from the court, traffic and parking violations agency or
21 administrative tribunal wherein the charges are pending that an appear-
22 ance or answer has been made or in the case of an administrative tribu-
23 nal that such applicant has complied with the rules and regulations of
24 said tribunal following entry of a final decision. Where an application
25 is denied pursuant to this section, the commissioner may, in their
26 discretion, deny a registration or renewal application to any other
27 person for the same vehicle and may deny a registration or renewal
28 application for any other motor vehicle registered in the name of the
29 applicant where the commissioner has determined that such registrant's
30 intent has been to evade the purposes of this subdivision and where the
31 commissioner has reasonable grounds to believe that such registration or
32 renewal will have the effect of defeating the purposes of this subdivi-
33 sion. Such denial shall only remain in effect as long as the summonses
34 remain unanswered, or in the case of an administrative tribunal, the
35 registrant fails to comply with the rules and regulations following
36 entry of a final decision.

37 § 9. Subdivision 1-a of section 1809 of the vehicle and traffic law,
38 as amended by section 8 of part N of chapter 58 of the laws of 2025, is
39 amended to read as follows:

40 1-a. Notwithstanding the provisions of subdivision one of this
41 section, the provisions of subdivision one of this section shall not
42 apply to an adjudication of liability of owners: (a) for violations of
43 subdivision (d) of section eleven hundred eleven of this chapter imposed
44 pursuant to a local law or ordinance imposing monetary liability on the
45 owner of a vehicle for failure of an operator thereof to comply with
46 traffic-control indications through the installation and operation of
47 traffic-control signal photo violation-monitoring systems, in accordance
48 with article twenty-four of this chapter; or (b) for violations of
49 subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty
50 of this chapter imposed pursuant to a demonstration program imposing
51 monetary liability on the owner of a vehicle for failure of an operator
52 thereof to comply with such posted maximum speed limits through the
53 installation and operation of photo speed violation monitoring systems,
54 in accordance with article thirty of this chapter; or (c) for violations
55 of bus lane restrictions as defined by article twenty-four of this chap-
56 ter imposed pursuant to a bus rapid transit program imposing monetary

1 liability on the owner of a vehicle for failure of an operator thereof
2 to comply with such bus lane restrictions through the installation and
3 operation of bus lane photo devices, in accordance with article twenty-
4 four of this chapter; or (d) for violations of toll collection regu-
5 lations imposed by certain public authorities pursuant to the law
6 authorizing such public authorities to impose monetary liability on the
7 owner of a vehicle for failure of an operator thereof to comply with
8 toll collection regulations of such public authorities through the
9 installation and operation of photo-monitoring systems, in accordance
10 with the provisions of section two thousand nine hundred eighty-five of
11 the public authorities law and sections sixteen-a, sixteen-b and
12 sixteen-c of chapter seven hundred seventy-four of the laws of nineteen
13 hundred fifty; or (e) for violations of section eleven hundred seventy-
14 four of this chapter when meeting a school bus marked and equipped as
15 provided in subdivisions twenty and twenty-one-c of section three
16 hundred seventy-five of this chapter imposed pursuant to a local law or
17 ordinance imposing monetary liability on the owner of a vehicle for
18 failure of an operator thereof to comply with school bus red visual
19 signals through the installation and operation of school bus photo
20 violation monitoring systems, in accordance with article twenty-nine of
21 this chapter; or (f) for violations of section three hundred eighty-five
22 of this chapter and the rules of the applicable covered agency or
23 covered authority as such terms are defined in article ten of this chap-
24 ter in relation to gross vehicle weight and/or axle weight violations
25 imposed pursuant to a weigh in motion demonstration program imposing
26 monetary liability on the owner of a vehicle for failure of an operator
27 thereof to comply with such gross vehicle weight and/or axle weight
28 restrictions through the installation and operation of weigh in motion
29 violation monitoring systems, in accordance with article ten of this
30 chapter; or (g) for violations of subdivision (b), (d), (f) or (g) of
31 section eleven hundred eighty of this chapter imposed pursuant to a
32 demonstration program imposing monetary liability on the owner of a
33 vehicle for failure of an operator thereof to comply with such posted
34 maximum speed limits within a highway construction or maintenance work
35 area through the installation and operation of photo speed violation
36 monitoring systems, in accordance with article thirty of this chapter;
37 or (h) for violations of bus operation-related traffic regulations as
38 defined by article twenty-four of this chapter imposed pursuant to a
39 demonstration program imposing monetary liability on the owner of a
40 vehicle for failure of an operator thereof to comply with such bus oper-
41 ation-related traffic regulations through the installation and operation
42 of bus operation-related photo devices, in accordance with article twen-
43 ty-four of this chapter; or (i) for violations of street cleaning park-
44 ing rules as defined by article twenty-four of this chapter imposed
45 pursuant to a program imposing monetary liability on the owner of a
46 vehicle for failure of an operator thereof to comply with such street
47 cleaning parking rules through the installation and operation of street
48 cleaning vehicle photo devices, in accordance with article twenty-four
49 of this chapter.

50 § 10. Subdivision 1 of section 1809-a of the vehicle and traffic law,
51 as amended by section 10 of part MM of chapter 56 of the laws of 2023,
52 is amended to read as follows:

53 1. The provisions of any other general or special law notwithstanding,
54 whenever, in a city having a population of one hundred thousand or more
55 according to the nineteen hundred eighty United States census,
56 proceedings in an administrative tribunal or a court result in a finding

1 of liability, or conviction for the violation of any statute, local law,
2 ordinance or rule involving the parking, stopping or standing of a motor
3 vehicle, except (a) an adjudication of liability of an owner for a
4 violation of bus operation-related traffic regulations as defined by
5 article twenty-four of this chapter imposed pursuant to a demonstration
6 program imposing monetary liability on the owner of a vehicle for fail-
7 ure of an operator thereof to comply with such bus operation-related
8 traffic regulations through the installation and operation of bus opera-
9 tion-related photo devices, in accordance with article twenty-four of
10 this chapter, or (b) an adjudication of liability of an owner for a
11 violation of street cleaning parking rules as defined by article twen-
12 ty-four of this chapter imposed pursuant to a program imposing monetary
13 liability on the owner of a vehicle for failure of an operator thereof
14 to comply with such street cleaning parking rules through the installa-
15 tion and operation of street cleaning vehicle photo devices, in accord-
16 ance with article twenty-four of this chapter, there shall be levied a
17 mandatory surcharge in addition to any other sentence, fine or penalty
18 otherwise permitted or required, in the amount of fifteen dollars. Such
19 surcharge shall not be deemed a monetary penalty for the purposes of
20 section two hundred thirty-seven of this chapter or section 19-203 of
21 the administrative code of the city of New York.

22 § 11. Subdivision 1 of section 1809-aa of the vehicle and traffic law,
23 as amended by section 11 of part MM of chapter 56 of the laws of 2023,
24 is amended to read as follows:

25 1. Notwithstanding any other provision of law, whenever proceedings in
26 an administrative tribunal or court result in a conviction for a
27 violation of section twelve hundred, twelve hundred one or twelve
28 hundred two of this chapter, except (a) an adjudication of liability of
29 an owner for a violation of bus operation-related traffic regulations as
30 defined by article twenty-four of this chapter imposed pursuant to a
31 demonstration program imposing monetary liability on the owner of a
32 vehicle for failure of an operator thereof to comply with such bus oper-
33 ation-related traffic regulations through the installation and operation
34 of bus operation-related photo devices, in accordance with article twen-
35 ty-four of this chapter, or (b) an adjudication of liability of an
36 owner for a violation of street cleaning parking rules as defined by
37 article twenty-four of this chapter imposed pursuant to a program
38 imposing monetary liability on the owner of a vehicle for failure
39 of an operator thereof to comply with such street cleaning parking rules
40 through the installation and operation of street cleaning vehicle photo
41 devices, in accordance with article twenty-four of this chapter, there
42 shall be levied a mandatory surcharge in addition to any other sentence,
43 fine or penalty otherwise permitted or required, in the amount of twen-
44 ty-five dollars.

45 § 12. Paragraph a of subdivision 1 of section 1809-e of the vehicle
46 and traffic law, as amended by section 9 of part N of chapter 58 of the
47 laws of 2025, is amended to read as follows:

48 a. Notwithstanding any other provision of law, whenever proceedings in
49 a court or an administrative tribunal of this state result in a
50 conviction for an offense under this chapter, except a conviction pursu-
51 ant to section eleven hundred ninety-two of this chapter, or for a traf-
52 fic infraction under this chapter, or a local law, ordinance, rule or
53 regulation adopted pursuant to this chapter, except: (i) a traffic
54 infraction involving standing, stopping, or parking or violations by
55 pedestrians or bicyclists; and (ii) an adjudication of liability of an
56 owner for a violation of subdivision (d) of section eleven hundred elev-

1 en of this chapter imposed pursuant to a local law or ordinance imposing
2 monetary liability on the owner of a vehicle for failure of an operator
3 thereof to comply with traffic-control indications through the installa-
4 tion and operation of traffic-control signal photo violation-monitoring
5 systems, in accordance with article twenty-four of this chapter; and
6 (iii) an adjudication of liability of an owner for a violation of subdivi-
7 sion (b), (c), (d), (f) or (g) of section eleven hundred eighty of
8 this chapter imposed pursuant to a demonstration program imposing mone-
9 tary liability on the owner of a vehicle for failure of an operator
10 thereof to comply with such posted maximum speed limits through the
11 installation and operation of photo speed violation monitoring systems,
12 in accordance with article thirty of this chapter; and (iv) an adjudi-
13 cation of liability of an owner for a violation of bus lane restrictions
14 as defined by article twenty-four of this chapter imposed pursuant to a
15 bus rapid transit program imposing monetary liability on the owner of a
16 vehicle for failure of an operator thereof to comply with such bus lane
17 restrictions through the installation and operation of bus lane photo
18 devices, in accordance with article twenty-four of this chapter; and (v)
19 an adjudication of liability of an owner for a violation of toll
20 collection regulations imposed by certain public authorities pursuant to
21 the law authorizing such public authorities to impose monetary liability
22 on the owner of a vehicle for failure of an operator thereof to comply
23 with toll collection regulations of such public authorities through the
24 installation and operation of photo-monitoring systems, in accordance
25 with section two thousand nine hundred eighty-five of the public author-
26 ities law or sections sixteen-a, sixteen-b and sixteen-c of chapter
27 seven hundred seventy-four of the laws of nineteen hundred fifty; and
28 (vi) an adjudication of liability of an owner for a violation of section
29 eleven hundred seventy-four of this chapter when meeting a school bus
30 marked and equipped as provided in subdivisions twenty and twenty-one-c
31 of section three hundred seventy-five of this chapter imposed pursuant
32 to a local law or ordinance imposing monetary liability on the owner of
33 a vehicle for failure of an operator thereof to comply with school bus
34 red visual signals through the installation and operation of school bus
35 photo violation monitoring systems, in accordance with article twenty-
36 nine of this chapter; and (vii) an adjudication of liability of an owner
37 for a violation of section three hundred eighty-five of this chapter and
38 the rules of the applicable covered agency or covered authority as such
39 terms are defined in article ten of this chapter in relation to gross
40 vehicle weight and/or axle weight violations imposed pursuant to a weigh
41 in motion demonstration program imposing monetary liability on the owner
42 of a vehicle for failure of an operator thereof to comply with such
43 gross vehicle weight and/or axle weight restrictions through the instal-
44 lation and operation of weigh in motion violation monitoring systems, in
45 accordance with article ten of this chapter; and (viii) an adjudication
46 of liability of an owner for a violation of subdivision (b), (d), (f) or
47 (g) of section eleven hundred eighty of this chapter imposed pursuant to
48 a demonstration program imposing monetary liability on the owner of a
49 vehicle for failure of an operator thereof to comply with such posted
50 maximum speed limits within a highway construction or maintenance work
51 area through the installation and operation of photo speed violation
52 monitoring systems, in accordance with article thirty of this chapter;
53 and (ix) an adjudication of liability of an owner for a violation of bus
54 operation-related traffic regulations as defined by article twenty-four
55 of this chapter imposed pursuant to a demonstration program imposing
56 monetary liability on the owner of a vehicle for failure of an operator

1 thereof to comply with such bus operation-related traffic regulations
2 through the installation and operation of bus operation-related photo
3 devices, in accordance with article twenty-four of this chapter; and (x)
4 an adjudication of liability of an owner for a violation of street
5 cleaning parking rules as defined by article twenty-four of this chapter
6 imposed pursuant to a program imposing monetary liability on the owner
7 of a vehicle for failure of an operator thereof to comply with such
8 street cleaning parking rules through the installation and operation of
9 street cleaning vehicle photo devices, in accordance with article twen-
10 ty-four of this chapter, there shall be levied in addition to any
11 sentence, penalty or other surcharge required or permitted by law, an
12 additional surcharge of twenty-eight dollars.

13 § 13. Subdivision 2 of section 87 of the public officers law is
14 amended by adding a new paragraph (w) to read as follows:

15 (w) are photographs, microphotographs, videotape or other recorded
16 images prepared under authority of section eleven hundred eleven-j of
17 the vehicle and traffic law.

18 § 14. The purchase or lease of equipment for a demonstration program
19 established pursuant to section 1111-j of the vehicle and traffic law,
20 as added by section one of this act, shall be subject to the provisions
21 of section 103 of the general municipal law.

22 § 15. This act shall take effect on the one hundred eightieth day
23 after it shall have become a law; provided, however, that sections one,
24 thirteen and fourteen of this act shall expire July 1, 2032, when upon
25 such date the provisions of such sections shall be deemed repealed;
26 provided further, however, that:

27 (a) the amendments to subdivision 1 of section 1809-a of the vehicle
28 and traffic law made by section ten of this act shall not affect the
29 repeal of such section and shall be deemed repealed therewith; and

30 (b) effective immediately, the addition, amendment and/or repeal of
31 any rule or regulation necessary for the implementation of section one
32 of this act on its effective date are authorized to be made and
33 completed on or before such effective date.